Township of NIPISSING
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REPORT TO COUNCIL

Date: August 1, 2023

From: Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer

Re: Request for Additional Road Signage

BACKGROUND/OVERVIEW

Council received comments and requests for additional road signage during the Town Hall meetings held for the Strategic Plan Update process.

Sign requests received were:
Speed Regulation signs along Alsace Road – 60km/hour signs.
Caution: Wildlife signs along Alsace Road.
Caution: Children Playing along municipal roadways.
School Bus Stopping signs along municipal roadways.

Speed Regulation Signs:
By-Law 2013-39 Authorizing Speed Limit Changes passed December 17, 2013, provided a blanket speed limit of 60km/hour on all Township roads. Speed signs are placed at all entry points to the municipality to advise of the speed limit of the area.

Since the implementation of By-Law 2013-39, no speed regulation signs have been removed from Township roadways.

Wildlife Caution Signs:
The Township does not currently install wildlife caution signs along municipal roadways as it should be an anticipated danger on rural roadways.

Children Playing Caution Signs:
Past practice of the Township is to not provide or install these signs by the Township along municipal roadways. There is a lack of data relating to the efficacy of caution signage of this type.

Some concerns presented with the usage of this type of signage include:

- Driver's should have a reasonable expectation of the presence of children in residential areas. The lack of signing on some roads may indicate otherwise if not placed on all roads.
- Where there is an absence of a tangible hazard, the effectiveness of signage wears off and drivers are more inclined to disregard the signage.

- The signs provide an additional distraction to drivers and may foster a disrespect for all signs. "Children at Play" signs inform a driver that children may be near the road but do not provide guidance as to a safe speed.
- Statistics do not reflect a change in reduction of speed of traffic or observance of drivers where these signs have been installed.
- Installation of these signs may provide a false sense of security to children allowing them to play on or near roadways. No level of signage could protect a pedestrian struck by a vehicle. The installation of these signs may result in the municipality assuming liability for child safety with respect to children playing on roadways.

The Manual of Uniform Traffic Control Devices for Canada does not list Children Playing signs in the cautionary signage to be used.

Safe Kids Canada does not endorse the use of "Children at Play" signs as a measure to increase children pedestrian safety.

School Bus Stopping Caution Signs:

The Transportation Association of Canada provides Guidelines for the Application and Implementation of the School Bus Stop Ahead sign. The Ministry of Transportation Ontario provided input into this document.

The document includes a Need Assessment Form to be completed when a request is received for a School Bust Stop Ahead sign is received.

The Township of Nipissing does not have direct knowledge of where those utilizing school busses are located within the municipality. This knowledge rests with the four school boards covering the area including Near North District School Board.

The use of the School Bus Stop Ahead sign is intended to warn drivers that they are approaching a school bus stop when the sight distance to the bust stop is limited to less than the minimum stopping sight distance, per the Guideline document.

Due to the temporary nature of school bust stops, a regular review of the location of signs is required with the removal or installation of signage be as quickly and as practically as possible.

When a request for the installation of a sign is received by the Township from the Transportation Consortium, the need is addressed.

FINANCIAL IMPACT

Signage has not been considered in the 2023 Municipal Budget.
Current pricing on signs:

Maximum Speed km/h, 60x90cm	$86.96 per sign
School Bus Stop Ahead, 75x75 cm	$89.18 per sign
School Bus Stop Ahead Tab, 60x30 cm	$30.31 per sign
*(to be used in conjunction with School Bus Stop Ahead sign)	
Children Playing, 75x75 cm	$89.18 per sign
Slow, Children Playing, 30x45 cm	$22.49 per sign
Deer Crossing, 60x60 cm	$58.13 per sign

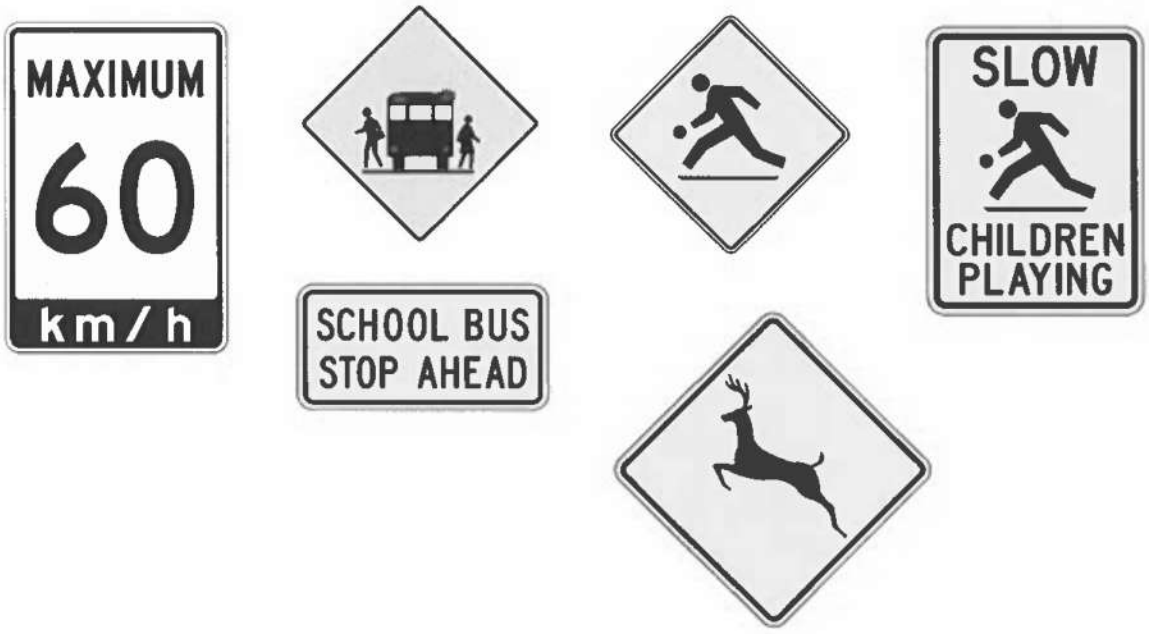
Each sign requires a Post and Mounting Hardware $46.35 per sign
Applicable taxes and staff resource time for installation and removal not included in totals.

RECOMMENDATION:

Additional signage purchases and installation have not been included in the 2023 approved operating budget. Council may request the installation of signs, provide direction on the location of signs and Staff can inspect the requested location of signage to provide a full cost estimate for inclusion of the 2024 Budget, as required.

The Township's insurance provider has been provided with the requested signage types and asked to provide any change to present liability with the use of any of the identified signs.

The Township should consider a sign installation policy to regulate the installation of signage on municipal roadways.



The following is a response received from Intact Insurance:

Here's the information I received from our road specialist.

1. Children at Play signs

   There is no "Children at Play" sign included in the Ontario Traffic Manuals (OTM). There is a "Playground Ahead" sign in OTM Book 6 – Warning Signs, that some municipalities have used as a children at play sign but that is an incorrect usage of the sign and is discouraged.

   There is a large body of work with regard to human factors in driving indicating that signs alone do not change driving behaviour and "overuse of any special warning device will dilute its effectiveness" (TAC Applied Human Factors in Road Safety Guideline 2013) and the courts are agreeing. In Stamatopoulos v. the Regional Municipality of Durham, Justice Copeland writes at lines 293 to 294; [293] In effect, if warning signs are over-used, they become like the boy who cried "wolf". Drivers are not as likely to heed a warning sign if they feel that signs are used for road issues that do not present a real hazard to an ordinary reasonable driver. This point was also made by several of the road safety experts . . . [294] Thus, I find that the *OTM* supports the proposition that balance must be used in deciding whether to sign any particular feature of a road. If the feature does not constitute a hazard to ordinary reasonable drivers, then the *OTM* does not support placing a warning sign. There are two reasons why I mention the above: 1) every driver on every road should realize that there is a potential for children at play at every house on that road; 2) using the playground ahead sign as a stand in for a children at play, the overuse of the sign would leave a driver unprepared to watch for children travelling to or from the playground.

   Reducing speed limits may slow drivers down, but for most drivers the speed they feel comfortable driving at on a given road section (and that will vary from driver to driver) is the speed they will continue to drive at even with the posting of a lower speed limit unless there are changes made to the driving environment or enforcement of the speed limit is increased.

   If the municipality wishes to design a sign (please don't use the Playground Ahead sign) and post it at various locations around the municipality that is their decision, but the signs may have little impact on driver behaviour.

2. School Bus Stop Ahead

   The School Bus Stop Ahead sign should be installed where horizontal curves, vertical curves or foliage limit sight distance to less than the minimum stopping sight distance, as specified in Tables 13 and 14 (see OTM Book 6 pages 136 and 137 to find the tables listed)

3. Deer Crossing sign

   The DEER CROSSING sign and MOOSE CROSSING signs must be used only: 1) Where it is known that deer or moose are accustomed to crossing the road (established through field observations), and thereby present a hazard to drivers; 2) At sections of road 8 km or less in length, that have at least one deer or moose collision annually, for a minimum of five years; or 3) At sections of road less than 1.5 km in length, that have at least four deer or moose accidents over a one-year period. The tab sign Wc-12t (Night Danger) may be used where, based on field observations, the potential hazard is more severe at night. The tab sign Wa-6t (Hazard Length) may be used to indicate the length of the crossing hazard.

It is difficult to give the municipality further advice without seeing the road, knowing the actual conditions and driving habits of people using the road.

Jason Gervais, RIBO, CRM, C.Tech.
Regional Manager, Municipal & Public Administration
Intact Public Entities

Original Inquiry:

Subject: Cautionary Road Signage Inquiry

Good afternoon Stephanie and Jason,
Council has received a number of requests for the installation of signage indicating "Slow, Children Playing" "School Bus Stop Ahead" and "Wildlife Danger".
Are there any liability implications with the installations of these signs for the Township that you are aware of?
Thank you,
Kris

Kris Croskery-Hodgins
Municipal Administrator-Clerk-Treasurer
Township of Nipissing